

Opinion of the Court

“[I]n passing § 8772,” Bank Markazi argued, “Congress effectively dictated specific factual findings in connection with a specific litigation—invading the province of the courts.” App. to Pet. for Cert. 114a. The District Court disagreed. The ownership determinations § 8772 required, see *supra*, at 222, the court said, “[w]ere not mere fig leaves,” for “it [was] quite possible that the [c]ourt could have found that defendants raised a triable issue as to whether the [b]locked [a]ssets were owned by Iran, or that Clearstream and/or UBAE ha[d] some form of beneficial or equitable interest,” App. to Pet. for Cert. 115a. Observing from the voluminous filings that “[t]here [was] . . . plenty . . . to [litigate],” the court described § 8772 as a measure that “merely chang[es] the law applicable to pending cases; it does not usurp the adjudicative function assigned to federal courts.” *Ibid.* (internal quotation marks omitted). Further, the court reminded, “Iran’s liability and its required payment of damages was . . . established years prior to the [enactment of § 8772]”; “[a]t issue [here] is merely execution [of judgments] on assets present in this district.” *Id.*, at 116a.¹⁴

The Court of Appeals for the Second Circuit unanimously affirmed. *Peterson v. Islamic Republic of Iran*, 758 F. 3d 185 (2014).¹⁵ On appeal, Bank Markazi again argued that § 8772 violates the separation of powers “by compelling the

availing. The matter was justiciable, the court concluded, because § 8772’s enactment demonstrated that the political branches were not troubled about interference with European blocking regulations. App. to Pet. for Cert. 94a–96a. And treaty provisions interposed no bar to enforcement of § 8772 because, the court reiterated, § 8772 displaces “any” inconsistent provision of law, treaty obligations included. *Id.*, at 101a–102a.

¹⁴ Bank Markazi and Clearstream unsuccessfully sought to defeat turnover on several other constitutional grounds: the Bill of Attainder, *Ex Post Facto*, Equal Protection, and Takings Clauses. See *id.*, at 115a–119a. Those grounds are no longer pressed.

¹⁵ Clearstream and UBAE settled with respondents before the Second Circuit’s decision. *Peterson v. Islamic Republic of Iran*, 758 F. 3d 185, 189 (2014).

Opinion of the Court

courts to reach a predetermined result in this case.” *Id.*, at 191. In accord with the District Court, the Second Circuit responded that “§ 8772 does not compel judicial findings [or results] under old law”; “rather, it retroactively changes the law applicable in this case, a permissible exercise of legislative authority.” *Ibid.* Congress may so prescribe, the appeals court noted, “even when the result under the revised law is clear.” *Ibid.*

To consider the separation-of-powers question Bank Markazi presents, we granted certiorari, 576 U. S. 1094 (2015), and now affirm.¹⁶

II

Article III of the Constitution establishes an independent Judiciary, a Third Branch of Government with the “province and duty . . . to say what the law is” in particular cases and controversies. *Marbury v. Madison*, 1 Cranch 137, 177 (1803). Necessarily, that endowment of authority blocks Congress from “requir[ing] federal courts to exercise the judicial power in a manner that Article III forbids.” *Plaut v. Spendthrift Farm, Inc.*, 514 U. S. 211, 218 (1995). Congress, no doubt, “may not usurp a court’s power to interpret and apply the law to the [circumstances] before it,” Brief for Former Senior Officials of the Office of Legal Counsel as *Amici Curiae* 3, 6, for “[t]hose who apply [a] rule to particular cases, must of necessity expound and interpret that rule,” *Marbury*, 1 Cranch, at 177.¹⁷ And our decisions place off

¹⁶ Respondents suggest that we decide this case on the ground that § 201(a) of the TRIA independently authorizes execution against the assets here involved, instead of reaching the constitutional question petitioner raises regarding § 8772. Brief for Respondents 53. The Court of Appeals, however, did not “resolve th[e] dispute under the TRIA,” 758 F. 3d, at 189, nor do we. This Court generally does not decide issues undressed on first appeal—especially where, as here, the matter falls outside the question presented and has not been thoroughly briefed before us.

¹⁷ Consistent with this limitation, respondents rightly acknowledged at oral argument that Congress could not enact a statute directing that, in “*Smith v. Jones*,” “*Smith wins*.” Tr. of Oral Arg. 40. Such a statute

Opinion of the Court

limits to Congress “vest[ing] review of the decisions of Article III courts in officials of the Executive Branch.” *Plaut*, 514 U.S., at 218 (citing *Hayburn’s Case*, 2 Dall. 409 (1792), and, e.g., *Chicago & Southern Air Lines, Inc. v. Waterman S. S. Corp.*, 333 U.S. 103, 114 (1948)). Congress, we have also held, may not “retroactively comman[d] the federal courts to reopen final judgments.” *Plaut*, 514 U.S., at 219.

A

Citing *United States v. Klein*, 13 Wall. 128 (1872), Bank Markazi urges a further limitation. Congress treads impermissibly on judicial turf, the Bank maintains, when it “prescribe[s] rules of decision to the Judicial Department . . . in [pending] cases.” *Id.*, at 146. According to the Bank, §8772 fits that description. Brief for Petitioner 19, 43. *Klein* has been called “a deeply puzzling decision,” Meltzer, Congress, Courts, and Constitutional Remedies, 86 Geo. L.J. 2537, 2538 (1998).¹⁸ More recent decisions, however, have made it clear that *Klein* does not inhibit Congress from “amend[ing] applicable law.” *Robertson v. Seattle Audubon Soc.*, 503 U.S. 429, 441 (1992); see *id.*, at 437–438; *Plaut*, 514 U.S., at 218 (*Klein*’s “prohibition does not take hold when Congress ‘amend[s] applicable law.’” (quoting *Robertson*, 503 U.S., at 441)). Section 8772, we hold, did just that.

would create no new substantive law; it would instead direct the court how pre-existing law applies to particular circumstances. See *infra* this page and 227–232. THE CHIEF JUSTICE challenges this distinction, *post*, at 247, but it is solidly grounded in our precedent. See *Robertson v. Seattle Audubon Soc.*, 503 U.S. 429, 439 (1992) (A statute is invalid if it “fail[s] to supply new law, but direct[s] results under old law.”), discussed in R. Fallon, J. Manning, D. Meltzer, & D. Shapiro, *Hart and Wechsler’s The Federal Courts and the Federal System* 324 (7th ed. 2015).

¹⁸ See also *id.*, at 323 (calling *Klein* a “delphic opinion”); Tyler, *The Story of Klein: The Scope of Congress’s Authority To Shape the Jurisdiction of the Federal Courts*, in *Federal Courts Stories* 87 (V. Jackson & J. Resnik eds. 2010) (Tyler) (calling *Klein* “baffl[ing]”).

Opinion of the Court

Klein involved Civil War legislation providing that persons whose property had been seized and sold in wartime could recover the proceeds of the sale in the Court of Claims upon proof that they had “never given any aid or comfort to the present rebellion.” Ch. 120, § 3, 12 Stat. 820; see *Klein*, 13 Wall., at 139. In 1863, President Lincoln pardoned “persons who . . . participated in the . . . rebellion” if they swore an oath of loyalty to the United States. Presidential Proclamation No. 11, 13 Stat. 737. One of the persons so pardoned was a southerner named Wilson, whose cotton had been seized and sold by Government agents. Klein was the administrator of Wilson’s estate. 13 Wall., at 132. In *United States v. Padelford*, 9 Wall. 531, 543 (1870), this Court held that the recipient of a Presidential pardon must be treated as loyal, *i. e.*, the pardon operated as “a complete substitute for proof that [the recipient] gave no aid or comfort to the rebellion.” Thereafter, Klein prevailed in an action in the Court of Claims, yielding an award of \$125,300 for Wilson’s cotton. 13 Wall., at 132.

During the pendency of an appeal to this Court from the Court of Claims judgment in *Klein*, Congress enacted a statute providing that no pardon should be admissible as proof of loyalty. Moreover, acceptance of a pardon without disclaiming participation in the rebellion would serve as conclusive evidence of disloyalty. The statute directed the Court of Claims and the Supreme Court to dismiss for want of jurisdiction any claim based on a pardon. 16 Stat. 235; R. Fallon, J. Manning, D. Meltzer, & D. Shapiro, *Hart and Wechsler’s The Federal Courts and the Federal System* 323, n. 29 (7th ed. 2015) (Hart and Wechsler). Affirming the judgment of the Court of Claims, this Court held that Congress had no authority to “impai[r] the effect of a pardon,” for the Constitution entrusted the pardon power “[t]o the executive alone.” *Klein*, 13 Wall., at 147. The Legislature, the Court stated, “cannot change the effect of . . . a pardon any more than the executive can change a law.” *Id.*, at 148. Lacking

Opinion of the Court

authority to impair the pardon power of the Executive, Congress could not “direc[t] [a] court to be instrumental to that end.” *Ibid.* In other words, the statute in *Klein* infringed the judicial power, not because it left too little for courts to do, but because it attempted to direct the result without altering the legal standards governing the effect of a pardon—standards Congress was powerless to prescribe. See *id.*, at 146–147; *Robertson*, 503 U. S., at 438 (Congress may not “compe[l] . . . findings or results under old law”).¹⁹

Bank Markazi, as earlier observed, *supra*, at 226, argues that § 8772 conflicts with *Klein*. The Bank points to a statement in the *Klein* opinion questioning whether “the legislature may prescribe rules of decision to the Judicial Department . . . in cases pending before it.” 13 Wall., at 146. One cannot take this language from *Klein* “at face value,” however, “for congressional power to make valid statutes retroactively applicable to pending cases has often been recognized.” Hart and Wechsler 324. See, *e. g.*, *United States v. Schooner Peggy*, 1 Cranch 103, 110 (1801). As we explained in *Landgraf v. USI Film Products*, 511 U. S. 244, 267 (1994), the restrictions that the Constitution places on retroactive legislation “are of limited scope”:

“The *Ex Post Facto* Clause flatly prohibits retroactive application of penal legislation. Article I, § 10, cl. 1, prohibits States from passing . . . laws ‘impairing the Obligation of Contracts.’ The Fifth Amendment’s Tak-

¹⁹ Given the issue before the Court—Presidential pardons Congress sought to nullify by withdrawing federal-court jurisdiction—commentators have rightly read *Klein* to have at least this contemporary significance: Congress “may not exercise [its authority, including its power to regulate federal jurisdiction,] in a way that requires a federal court to act unconstitutionally.” Meltzer, Congress, Courts, and Constitutional Remedies, 86 Geo. L. J. 2537, 2549 (1998). See also Tyler 112 (“Congress may not employ the courts in a way that forces them to become active participants in violating the Constitution.”).

Opinion of the Court

ings Clause prevents the Legislature (and other government actors) from depriving private persons of vested property rights except for a ‘public use’ and upon payment of ‘just compensation.’ The prohibitions on ‘Bills of Attainder’ in Art. I, §§ 9–10, prohibit legislatures from singling out disfavored persons and meting out summary punishment for past conduct. The Due Process Clause also protects the interests in fair notice and repose that may be compromised by retroactive legislation; a justification sufficient to validate a statute’s prospective application under the Clause ‘may not suffice’ to warrant its retroactive application.” *Id.*, at 266 (citation and footnote omitted).

“Absent a violation of one of those specific provisions,” when a new law makes clear that it is retroactive, the arguable “unfairness of retroactive civil legislation is not a sufficient reason for a court to fail to give [that law] its intended scope.” *Id.*, at 267. So yes, we have affirmed, Congress may indeed direct courts to apply newly enacted, outcome-altering legislation in pending civil cases. See *Plaut*, 514 U. S., at 226. Any lingering doubts on that score have been dispelled by *Robertson*, 503 U. S., at 441, and *Plaut*, 514 U. S., at 218.

Bank Markazi argues most strenuously that § 8772 did not simply amend pre-existing law. Because the judicial findings contemplated by § 8772 were “foregone conclusions,” the Bank urges, the statute “effectively” directed certain fact-finders and specified the outcome under the amended law. See Brief for Petitioner 42, 47. See also *post*, at 247–248. Recall that the District Court, closely monitoring the case, disagreed. *Supra*, at 224; App. to Pet. for Cert. 115a (“[The] determinations [required by § 8772 were] not mere fig leaves,” for “it [was] quite possible that the [c]ourt could have found that defendants raised a triable issue as to whether the [b]locked [a]ssets were owned by Iran, or that

Opinion of the Court

Clearstream and/or UBAE ha[d] some form of beneficial or equitable interest.”).²⁰

In any event, a statute does not impinge on judicial power when it directs courts to apply a new legal standard to undisputed facts. “When a plaintiff brings suit to enforce a legal obligation it is not any the less a case or controversy upon which a court possessing the federal judicial power may rightly give judgment, because the plaintiff’s claim is uncontested or incontestable.” *Pope v. United States*, 323 U.S. 1, 11 (1944). In *Schooner Peggy*, 1 Cranch, at 109–110, for example, this Court applied a newly ratified treaty that, by requiring the return of captured property, effectively permitted only one possible outcome. And in *Robertson*, 503 U.S., at 434–435, 438–439, a statute replaced governing environmental-law restraints on timber harvesting with new

²⁰ The District Court understandably concluded that § 8772 left it “plenty . . . to adjudicate.” App. to Pet. for Cert. 115a. For one, the statute did not define its key terms, “beneficial interest” and “equitable title.” To arrive at fitting definitions, the District Court consulted legal dictionaries and precedent. See *id.*, at 111a–112a; *Zivotofsky v. Clinton*, 566 U.S. 189, 196 (2012) (Interpretation of statutes “is a familiar judicial exercise.”). Further, § 8772 required the District Court to determine whether the Bank owned the assets in question. § 8772(a)(2)(A). Clearstream contended that there were triable issues as to whether Bank Markazi was the owner of the blocked assets. App. to Pet. for Cert. 37a–39a, 111a. The court rejected that contention, finding that Clearstream and UBAE were merely accountholders, maintaining the assets “on behalf of” the Bank. *Id.*, at 112a–113a; see *id.*, at 38a–39a. Next, § 8772 required the court to determine whether any party, other than the Bank, possessed a “constitutionally protected interest” in the assets. § 8772(a)(2)(B). Clearstream argued that it had such an interest, but the court disagreed. App. to Pet. for Cert. 117a–118a (determining that Clearstream had no constitutionally protected “investment-backed expectatio[n]” in the assets). Finally, prior to the statute’s enactment, Bank Markazi and Clearstream had argued that the assets in question were located in Luxembourg, not New York. *Supra*, at 223. Leaving the issue for court resolution, Congress, in § 8772(a)(1)(A), required the District Court to determine whether the assets were “held in the United States.”

Opinion of the Court

legislation that permitted harvesting in all but certain designated areas. Without inquiring whether the new statute's application in pending cases was a "foregone conclusio[n]," Brief for Petitioner 47, we upheld the legislation because it left for judicial determination whether any particular actions violated the new prescription. In short, § 8772 changed the law by establishing new substantive standards, entrusting to the District Court application of those standards to the facts (contested or uncontested) found by the court.

Resisting this conclusion, THE CHIEF JUSTICE compares § 8772 to a hypothetical "law directing judgment for Smith if the court finds that Jones was duly served with notice of the proceedings." *Post*, at 248.²¹ Of course, the hypothesized law would be invalid—as would a law directing judgment for Smith, for instance, if the court finds that the sun rises in the east. For one thing, a law so cast may well be irrational and, therefore, unconstitutional for reasons distinct from the separation-of-powers issues considered here. See, *e.g.*, *infra*, at 234, n. 27. For another, the law imagined by the dissent does what *Robertson* says Congress cannot do: Like a statute that directs, in "Smith v. Jones," "Smith wins," see *supra*, at 225, n. 17, it "compel[s] . . . findings or results under old law," for it fails to supply any new legal standard effectuating the lawmakers' reasonable policy judgment, 503 U. S., at 438.²² By contrast, § 8772 provides a new

²¹ Recall, again, that respondents are judgment creditors who prevailed on the merits of their respective cases. Section 8772 serves to facilitate their ability to collect amounts due to them from assets of the judgment debtor.

²² The dissent also analogizes § 8772 to a law that makes "conclusive" one party's flimsy evidence of a boundary line in a pending property dispute, notwithstanding that the governing law ordinarily provides that an official map establishes the boundary. *Post*, at 237. Section 8772, however, does not restrict the evidence on which a court may rely in making the required findings. A more fitting analogy for depicting § 8772's operation might be: In a pending property dispute, the parties contest whether an ambigu-

Opinion of the Court

standard clarifying that, if Iran owns certain assets, the victims of Iran-sponsored terrorist attacks will be permitted to execute against those assets. Applying laws implementing Congress' policy judgments, with fidelity to those judgments, is commonplace for the Judiciary.

B

Section 8772 remains “unprecedented,” Bank Markazi charges, because it “prescribes a rule for a single pending case—identified by caption and docket number.” Brief for Petitioner 17.²³ The amended law in *Robertson*, however, also applied to cases identified by caption and docket number, 503 U.S., at 440, and was nonetheless upheld. Moreover, §8772, as already described, see *supra*, at 219–221, facilitates execution of judgments in 16 suits, together encompassing more than 1,000 victims of Iran-sponsored terrorist attacks.²⁴ Although consolidated for administrative purposes at the execution stage,²⁵ the judgment-execution

ous statute makes a 1990 or 2000 county map the relevant document for establishing boundary lines. To clarify the matter, the legislature enacts a law specifying that the 2000 map supersedes the earlier map.

²³ At oral argument, Bank Markazi clarified that its argument extended beyond a single pending case, encompassing as well “a limited category of cases.” Tr. of Oral Arg. 5. See also *id.*, at 57–58.

²⁴ Section 8772's limitation to one consolidated proceeding operates unfairly, Bank Markazi suggests, because other judgment creditors “would be subject to a completely different rule” if they “sought to execute against the same assets” outside No. 10–CIV–4518. Brief for Petitioner 26 (citing §8772(c) (“Nothing in this section shall be construed . . . to affect . . . any proceedings other than” No. 10–CIV–4518)). But nothing in §8772 prevented additional judgment creditors from joining the consolidated proceeding after the statute's enactment. Indeed, one group of respondents did so. See *supra*, at 221, n. 9.

²⁵ District courts routinely consolidate multiple related matters for a single decision on common issues. See, e.g., *Securities Investor Protection Corp. v. Bernard L. Madoff Inv. Securities LLC*, 476 B. R. 715, 717 (SDNY 2012) (deciding several legal questions arising in over 80 cases concerning “the massive Ponzi scheme perpetrated by Bernard L. Madoff”).

Opinion of the Court

claims brought pursuant to Federal Rule of Civil Procedure 69 were not independent of the original actions for damages and each claim retained its separate character. See *Mackey v. Lanier Collection Agency & Service, Inc.*, 486 U. S. 825, 834–835, n. 10 (1988) (postjudgment garnishment action brought under Rule 69 is part of the “process to enforce a judgment,” not a new suit (alteration omitted and emphasis deleted)); 10 *Cyclopedia of Federal Procedure* §36:8, p. 385 (3d ed. 2010) (“Proceedings in execution are proceedings in the action itself”); 9A C. Wright & A. Miller, *Federal Practice and Procedure* §2382, p. 10 (3d ed. 2008) (“[A]ctions do not lose their separate identity because of consolidation.”).²⁶

The Bank’s argument is further flawed, for it rests on the assumption that legislation must be generally applicable, that “there is something wrong with particularized legislative action.” *Plaut*, 514 U. S., at 239, n. 9. We have found that assumption suspect:

“While legislatures usually act through laws of general applicability, that is by no means their only legitimate mode of action. Private bills in Congress are still common, and were even more so in the days before establishment of the Claims Court. Even laws that impose a duty or liability upon a single individual or firm are not on that account invalid—or else we would not have the extensive jurisprudence that we do concerning the Bill of Attainder Clause, including cases which say that [the Clause] requires not merely ‘singling out’ but also *pun-*

²⁶ Questioning this understanding of the proceedings below, THE CHIEF JUSTICE emphasizes that many of the judgment creditors were joined in the *Peterson* enforcement proceeding by interpleader. See *post*, at 243, n. 1. That is true, *supra*, at 221, n. 9, but irrelevant. As explained above, execution proceedings are continuations of merits proceedings, not new lawsuits. Thus, the fact that many creditors joined by interpleader motion did not transform execution claims in 16 separate suits into “a single case.” *Post*, at 243, n. 1.

Opinion of the Court

ishment, see, e. g., *United States v. Lovett*, 328 U. S. 303, 315–318 (1946), [or] a case [holding] that Congress may legislate ‘a legitimate class of one,’ *Nixon v. Administrator of General Services*, 433 U. S. 425, 472 (1977).” *Ibid.*²⁷

This Court and lower courts have upheld as a valid exercise of Congress’ legislative power diverse laws that governed one or a very small number of specific subjects. *E. g.*, *Regional Rail Reorganization Act Cases*, 419 U. S. 102, 158–161 (1974) (upholding Act that applied to specific railroads in a single region); *Pope*, 323 U. S., at 9–14 (upholding special Act giving a contractor the right to recover additional compensation from the Government); *The Clinton Bridge*, 10 Wall. 454, 462–463 (1870) (upholding Act governing a single bridge); *Pennsylvania v. Wheeling & Belmont Bridge Co.*, 18 How. 421, 430–432 (1856) (similar); *Biodiversity Assoc. v. Cables*, 357 F. 3d 1152, 1156, 1164–1171 (CA10 2004) (upholding law that abrogated specific settlement agreement between U. S. Forest Service and environmental groups); *SeaRiver Maritime Financial Holdings, Inc. v. Mineta*, 309 F. 3d 662, 667, 674–675 (CA9 2002) (upholding law that effectively applied to a single oil tanker); *National Coalition To Save Our Mall v. Norton*, 269 F. 3d 1092, 1097 (CADDC 2001) (upholding law that applied to a single memorial).

C

We stress, finally, that §8772 is an exercise of congressional authority regarding foreign affairs, a domain in which the controlling role of the political branches is both necessary and proper. See, e. g., *Zivotofsky v. Kerry*, 576 U. S. 1, 22

²⁷ Laws narrow in scope, including “class of one” legislation, may violate the Equal Protection Clause if arbitrary or inadequately justified. *Village of Willowbrook v. Olech*, 528 U. S. 562, 564 (2000) (*per curiam*) (internal quotation marks omitted); *New Orleans v. Dukes*, 427 U. S. 297, 305–306 (1976) (*per curiam*).

Opinion of the Court

(2015). In furtherance of their authority over the Nation's foreign relations, Congress and the President have, time and again, as exigencies arose, exercised control over claims against foreign states and the disposition of foreign-state property in the United States. See *Dames & Moore v. Regan*, 453 U. S. 654, 673–674, 679–681 (1981) (describing this history). In pursuit of foreign policy objectives, the political branches have regulated specific foreign-state assets by, *inter alia*, blocking them or governing their availability for attachment. See *supra*, at 217 (describing the TWEA and the IEEPA); *e. g.*, *Dames & Moore*, 453 U. S., at 669–674. Such measures have never been rejected as invasions upon the Article III judicial power. Cf. *id.*, at 674 (Court resists the notion “that the Federal Government as a whole lacked the power” to “nullif[y] . . . attachments and orde[r] the transfer of [foreign-state] assets.”).²⁸

Particularly pertinent, the Executive, prior to the enactment of the FSIA, regularly made case-specific determinations whether sovereign immunity should be recognized, and courts accepted those determinations as binding. See *Republic of Austria v. Altmann*, 541 U. S. 677, 689–691 (2004); *Ex parte Peru*, 318 U. S. 578, 588–590 (1943). As this Court explained in *Republic of Mexico v. Hoffman*, 324 U. S. 30, 35 (1945), it is “not for the courts to deny an immunity which our government has seen fit to allow, or to allow an immunity on new grounds which the government has not seen fit to recognize.” This practice, too, was never perceived as an encroachment on the federal courts’ jurisdiction. See

²⁸ THE CHIEF JUSTICE correctly notes that the Court in *Dames & Moore v. Regan*, 453 U. S. 654, 661 (1981), urged caution before extending its analysis to “‘other situations’” not presented in that case. *Post*, at 250. Much of the Court’s cause for concern, however, was the risk that the ruling could be construed as license for the broad exercise of unilateral executive power. See 453 U. S., at 688; *American Ins. Assn. v. Garamendi*, 539 U. S. 396, 438 (2003) (GINSBURG, J., dissenting). As §8772 is a law passed by Congress and signed by the President, that risk is nonexistent here.

ROBERTS, C. J., dissenting

Dames & Moore, 453 U. S., at 684–685 (“[P]rior to the enactment of the FSIA [courts would not have] reject[ed] as an encroachment on their jurisdiction the President’s determination of a foreign state’s sovereign immunity.”).

Enacting the FSIA in 1976, Congress transferred from the Executive to the courts the principal responsibility for determining a foreign state’s amenability to suit. See *Verlinden B. V. v. Central Bank of Nigeria*, 461 U. S. 480, 488–489 (1983). But it remains Congress’ prerogative to alter a foreign state’s immunity and to render the alteration dispositive of judicial proceedings in progress. See *Republic of Iraq v. Beaty*, 556 U. S. 848, 856–857, 865 (2009). By altering the law governing the attachment of particular property belonging to Iran, Congress acted comfortably within the political branches’ authority over foreign sovereign immunity and foreign-state assets.

* * *

For the reasons stated, we are satisfied that § 8772—a statute designed to aid in the enforcement of federal-court judgments—does not offend “separation of powers principles . . . protecting the role of the independent Judiciary within the constitutional design.” *Miller v. French*, 530 U. S. 327, 350 (2000). The judgment of the Court of Appeals for the Second Circuit is therefore

Affirmed.

CHIEF JUSTICE ROBERTS, with whom JUSTICE SOTOMAYOR joins, dissenting.

Imagine your neighbor sues you, claiming that your fence is on his property. His evidence is a letter from the previous owner of your home, accepting your neighbor’s version of the facts. Your defense is an official county map, which under state law establishes the boundaries of your land. The map shows the fence on your side of the property line. You also argue that your neighbor’s claim is six months outside the statute of limitations.

ROBERTS, C. J., dissenting

Now imagine that while the lawsuit is pending, your neighbor persuades the legislature to enact a new statute. The new statute provides that for your case, and your case alone, a letter from one neighbor to another is conclusive of property boundaries, and the statute of limitations is one year longer. Your neighbor wins. Who would you say decided your case: the legislature, which targeted your specific case and eliminated your specific defenses so as to ensure your neighbor's victory, or the court, which presided over the *fait accompli*?

That question lies at the root of the case the Court confronts today. Article III of the Constitution commits the power to decide cases to the Judiciary alone. See *Stern v. Marshall*, 564 U. S. 462, 484 (2011). Yet, in this case, Congress arrogated that power to itself. Since 2008, respondents have sought \$1.75 billion in assets owned by Bank Markazi, Iran's central bank, in order to satisfy judgments against Iran for acts of terrorism. The Bank has vigorously opposed those efforts, asserting numerous legal defenses. So, in 2012, four years into the litigation, respondents persuaded Congress to enact a statute, 22 U. S. C. § 8772, that for this case alone eliminates each of the defenses standing in respondents' way. Then, having gotten Congress to resolve all outstanding issues in their favor, respondents returned to court . . . and won.

Contrary to the majority, I would hold that § 8772 violates the separation of powers. No less than if it had passed a law saying "respondents win," Congress has decided this case by enacting a bespoke statute tailored to this case that resolves the parties' specific legal disputes to guarantee respondents victory.

I

A

Article III, § 1 of the Constitution vests the "judicial Power of the United States" in the Federal Judiciary. That